

23SMCV05743 23SMCV05743

County: los-angeles

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Department: 205

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Case Number: 23SMCV05743 Hearing Date: August 24, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

GERARDO SERNAS,

Plaintiff,

v.

PARADIGM BUILDERS, INC., et al.,

Defendants.

Case No.: 23SMCV05743

Hearing Date: August 24, 2026

[TENTATIVE] order RE:

plaintiff's motion to enforce

settlement and request for

attorneys' fees and costs

BACKGROUND

This is a personal injury case. Plaintiff Gerardo Sernas was a painter employed by HLuna Painting. He was working at 1090 Moraga Drive, Los Angeles, California, when the scaffolding on which he was standing fell. He landed on the asphalt floor underneath him and suffered a complete lower cervical spinal cord injury that resulted in paraplegia in the lower half of his body, including bladder and bowel dysfunction. At the time of the incident, Plaintiff was 35 years old. Defendant Paradigm Builders, Inc. owned, erected, operated and/or maintained the scaffolding.

The case was scheduled for trial on April 6, 2026. On April 3, 2026, the parties informed the Court that the case had been settled. According to Plaintiff, Defendant made the initial payment required under the Settlement Agreement but failed to make the remaining payment when it became due. Instead, on July 9, 2026, Defendant made a partial payment of \$10,000 but the Settlement Agreement does not provide for installment payments.

This hearing is on Plaintiff's motion to enforce the Settlement Agreement. Plaintiff requests that the Court award her the amount due under the Settlement Agreement, plus \$2,400 in attorneys' fees and costs.

LEGAL STANDARD

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Code Civ. Proc. §664.6 provides, in pertinent part, as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement."¿¿

In hearing a Code Civ. Proc. §664.6 motion, the trial court may receive evidence, determine disputed facts, and enter terms of a settlement agreement as a judgment.¿ (Bowers v. Raymond J. Lucia Companies, Inc. (2012) 206 Cal.App.4th 724, 732.) The Court may also receive oral testimony in addition to declarations. (Kohn v. Jaymar-Ruby, Inc. (1994) 23 Cal.App.4th 1530, 1533.) The Court may interpret the terms and conditions of the settlement (Fiore v. Alvord (1985) 182 Cal.App.3d 561, 566), but the Court may not create material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810).¿

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute.¿ (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.)¿ The party seeking to enforce a settlement "must first establish the agreement at issue was set forth 'in a writing signed by the parties' (§ 664.6) or was made orally before the court.¿ [Citation.]"¿ (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)¿¿

The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought.¿ (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.)¿ "Parties" under Code Civ. Proc. § 664.6 means the litigants themselves, and not their attorneys, must expressly consent to settlement.¿ (Levy v. Superior Court (1995) 10 Cal.4th 578, 586 ("we conclude that the term 'parties' as used in section 664.6...means the litigants themselves, and does not include their attorneys of record").)¿¿¿

DISCUSSION

Plaintiff is entitled to an order enforcing the Settlement Agreement and General Release.¿ Plaintiff submitted evidence he entered into a written Settlement Agreement.¿ (Ex. 1 to Contreras Decl.) The Settlement Agreement is signed by both parties. (Id.) The parties agreed in the Settlement Agreement that "the court in the Subject Action shall continue to have jurisdiction over this action and these Parties for said purpose." (Id.)¿ Under the Settlement Agreement, Defendant was

required to pay in two installments. The first installment was due on June 8, 2026, and the second installment was due on September 5, 2026. Defendant make the required payment on June 8, 2026, but instead made a partial payment (10% of the amount due) on July 9, 2026. (Id. ¶18.) Defendant does not dispute that it failed to make the payments due under the Settlement Agreement. On these facts, the Court concludes Plaintiff has met the requirements of Code Civ. Proc. §664.6, and the Court will enforce the settlement.

Defendant argues, however, that the Court should not require full payment within 5 days of the Court's order (or by August 29, 2026) because under the terms of the Settlement Agreement, the last installment is not due until September 5, 2026. The Court agrees in part. The Court will order Defendant to pay the remaining 90% of the first installment within two days of the Court's order, and the second installment by September 5, 2026.

In addition, Plaintiff seeks attorneys' fees and costs of \$2,640. The so-called "American rule" requires both winners and losers to bear their own legal fees in this as in all litigation. The California version of the "American rule" is found in Code of Civil Procedure section 1021 which reads in pertinent part: "Except as attorneys' fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties" (Code Civ. Proc., § 1021, italics added.)

Here, Plaintiff does not point to anything in the Settlement Agreement that provides for attorneys' fees and costs where one party breaches the Settlement Agreement. Indeed, section 15 of the Agreement states: "The Parties agree to bear their own costs of suit and attorney's fees in the Subject Action." Plaintiff also does not cite any statute that would entitle him to attorneys' fees and costs under these circumstances. Accordingly, the Court denies the request for attorneys' fees and costs.

Plaintiff also seeks prejudgment interest on the settlement amounts that have not been paid, at the rate of 10 percent per annum from June 8, 2026 until the outstanding settlement payments are made in full. However, Plaintiff does not point to anything in the Settlement Agreement that would allow for such an award. Likewise, Plaintiff does not cite any statute that would allow the Court to award interest.

Section 664.6 authorizes the trial court to enter a judgment reflecting the terms of the parties' settlement agreement—nothing more, and nothing less. "Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon." (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1360.)

The Court cannot award prejudgment interest in cases of breach of the settlement agreement, when nothing in the Settlement Agreement authorizes the Court to do so. If the Court were to make such an award, it would be materially altering the terms of the parties' agreement. (See BTHHM Berkeley, LLC v. Johnston (2024) 100 Cal.App.5th, 1220, 1225-1226.)

CONCLUSION

Based on the foregoing, the Court GRANTS IN PART and DENIES IN PART Plaintiff's motion to enforce settlement. The Court orders Defendant to pay the remaining amounts of the first installment within two days of this Court's Order (or by August 26, 2026) and the second installment by September 5, 2026. The Court denies the request for attorneys' fees and costs as well as prejudgment interest.

IT IS SO ORDERED.

DATED: August 24, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court